

26STCV03264 26STCV03264

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Case Number: 26STCV03264 Hearing Date: August 4, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

4, 2026

CASE NAME: Andrew

Hwang v. City of Glendora, et al.

CASE NO.: 26STCV03264

DEMURRER

TO FIRST AMENDED COMPLAINT WITH MOTION TO STRIKE

MOVING PARTY: Defendants

Alex Stein, Jacob Swann, Matthew Fenner, Kelly Dargel, Joshua Price, Ed Meeker,

Daniel Gigliobianco, and Michael Randazzo

RESPONDING PARTY(S): Plaintiff Andrew Hwang

REQUESTED RELIEF:

1. Demurrer

to the second cause of action for failing to state sufficient facts to
constitute a cause of action;

2. Motion

to strike prayer for punitive damages in the fourth cause of action against the Individual Defendants.

TENTATIVE RULING:

1. Demurrers

by Stein, Fenner, Price, Meeker, and Gigliobianco are OVERRULED;

2. Demurrers

by Swann, Dargel, and Randazzo are SUSTAINED with leave to amend;

3. Motion

to strike is GRANTED;

4. Plaintiff

shall file their amended complaint within 21 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On January 30, 2026, Plaintiff Andrew Hwang (Plaintiff) filed a complaint against Defendants City of Glendora (City), Alex Stein (Stein), Jacob Swann (Swann), Matthew Fenner (Fenner), Kelly Dargel (Dargel), Joshua Price (Price), Ed Meeker (Meeker), Daniel Gigliobianco (Gigliobianco), and Michael Randazzo (Randazzo) (sometimes collectively Defendants) with five causes of action for: (1) discrimination based on race, and national origin, in violation of FEHA; (2) hostile work environment in violation of FEHA; (3) retaliation in violation of FEHA; (4) failure to prevent discrimination, harassment, and retaliation in violation of FEHA; and (5) whistleblower retaliation in violation of Lab. Code § 1102.5.

According to the complaint, Plaintiff was subjected to pervasive race-based harassment by multiple supervisors and coworkers, including repeated racist remarks, mocking of his Korean heritage, and discriminatory treatment. After Plaintiff reported this misconduct—along with concerns about an illegal arrest quota system—supervisors allegedly retaliated by launching a series of procedurally improper and discriminatory Internal Affairs investigations, placing him on administrative leave, and initiating termination proceedings. He asserts City ignored his complaints, failed to take corrective action, and instead escalated retaliation, creating a hostile work

environment and causing substantial emotional and economic harm.

On February 3, 2026, Plaintiff filed the operative first amended complaint (FAC) against the same Defendants and for the same causes of action.

On May 1, 2026, Stein, Swannm Fenner, Dargel, Price, Meeker, Gigliobianco, and Randazzo (the Individual Defendants) filed the instant demurrer with motion to strike. On July 22, 2026, Plaintiff filed an opposition to the demurrer but did not file an opposition to the motion to strike. On July 28, 2026, the Individual Defendants filed a reply in support of the demurrer.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, the parties met and conferred by videoconference on April 16, 2026. (Declaration of Olivia Davis ¶ 8.) This requirement is therefore met.

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94 (*Frantz*).)¿

Demurrer

– Uncertainty

CCP § 430.10(f) provides that a party may demurrer to a pleading because: “The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.”

However, “demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) “A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant’s knowledge.” (*Ibid.*)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (*Id.*, § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.*¿§¿437.)¿“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (*Vaccaro v. Kaiman*¿(1998) 63 Cal.App.4th 761, 768.)

ANALYSIS:

Demurrer

Second Cause of

Action: Hostile Work Environment in Violation of FEHA

The Individual Defendants contend this claim fails to allege severe or pervasive conduct sufficient to create a hostile work environment. Plaintiff alleged one to two acts for each Individual Defendants which defeats pervasiveness. The conduct alleged is otherwise not severe by his own perception.

Plaintiff argues that the Individual Defendants apply a more rigid standard than that required of Gov. Code § 12923, a single incident of harassing conduct can suffice, and that he sufficiently alleged such conduct by the Individual Defendants.

The Individual Defendants reply they applied the correct standard, Plaintiff did not allege conduct that considered independently was sufficiently severe or pervasive to constitute harassment, did not allege facts that the conduct unreasonably interfered with his work performance or created an offensive working environment,

A claim for hostile work environment requires: (1) the plaintiff is a member of a protected class; (2) subjected to unwelcome harassment; (3) based on the plaintiff's protected status; (4) the harassment unreasonably interfered with their work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 581; see also Bailey v. San Francisco Dist. Attorney's Office (2024) 16 Cal.5th 611, 627.)

The element at issue is severe or pervasive conduct. Harassment "creates a hostile, offensive, oppressive, or intimidating work environment and deprives victims of their statutory right to work in a place free of discrimination when the harassing conduct sufficiently offends, humiliates, distresses, or intrudes upon its victim, so as to disrupt the victim's emotional tranquility in the workplace, affect the victim's ability to perform

the job as usual, or otherwise interfere with and undermine the victim's personal sense of well-being." (Ortiz, supra, 37 Cal.App.5th at p. 582 [citing Gov. Code § 12923(a).]) "A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Ibid. [citing Gov. Code § 12923(b).])

There is a subjective and objective standard: objective severity is judged from the perspective of a reasonable person in the plaintiff's position considering all the circumstances and subjectively the employee must perceive the work environment to be hostile (i.e., the conduct would have interfered with a reasonable employee's work performance and would have seriously affected their psychological well-being). (Id. at p. 583; see also Bailey, supra, 16 Cal.5th at p. 629.) "The plaintiff is not required to show a decline in productivity" only that a reasonable person subjected to the activity would find "the harassment so altered working conditions as to make it more difficult to do the job." (Carranza v. City of Los Angeles (2025) 111 Cal.App.5th 388, 402.) Courts consider allegations of a racially hostile workplace "from the perspective of a reasonable person belonging to the racial or ethnic group of the plaintiff." (Bailey, supra, 16 Cal.5th at p. 629.) "Simple teasing, offhand comments, and isolated incidents (unless extremely serious) are not sufficient to create an actionable claim of harassment." (Id. at p. 628.)

"An employee of an entity subject to this subdivision is personally liable for any harassment prohibited by this section that is perpetrated by the employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action." (Gov. Code § 12940(j)(3).)

i.

Alex Stein

Here, Plaintiff sufficiently alleged severe conduct as to Stein for pleading purposes. First, Stein's alleged conduct consisted of mocking Korean business owners' pronunciation of "cheese" in Plaintiff's presence. (FAC ¶ 29.) Second, Stein is in a position of power as a lieutenant and supervisor. (FAC ¶ 4.) A reasonable person in Plaintiff's position could find working conditions significantly altered by a lieutenant's mocking their ethnic group's accent such that it is more difficult to do the job. For pleading purposes,

this is sufficient.

Accordingly, the court OVERRULES the demurrer as to Stein.

ii.

Jacob Swann

Here, Plaintiff did not sufficiently allege severe or pervasive conduct by Swann. First, Swann was a sergeant and supervisor. (FAC ¶ 5.) Second, Swann's allegedly hostile conduct included verbal outbursts to "Shut the fuck up!" during a booking, passive-aggressive behavior, constant hovering, refusing to provide meaningful guidance, and a generally intimidating behavior. (FAC ¶ 32.) Plaintiff adds this was due to his race. (Ibid.) But that is a conclusion not a fact. There are no other facts that Swann's actions were due to Plaintiff's race instead of poor behavior.

Accordingly, the court SUSTAINS the demurrer as to Swann.

iii.

Matthew Fenner

Here, Plaintiff sufficiently stated severe conduct by Fenner for similar reasons as for Stein. First, Fenner was a lieutenant and supervisor. (FAC ¶ 6.) Second, Fenner made a racist remark at a sushi restaurant telling Plaintiff to "go back to the kitchen" to cook food for the group because of his Asian ethnicity. (FAC ¶ 25.) More so than for Stein, this comment directed to Plaintiff could place a reasonable person in Plaintiff's position finding their working conditions seriously altered by this behavior. This is sufficient for the pleadings stage.

Accordingly, the court OVERRULES the demurrer as to Fenner.

iv.

Kelly Dargel

Here, Plaintiff insufficiently stated severe or pervasive conduct by Dargel. First, Dargel was a non-supervisory employee. (FAC ¶ 7.) Second, Dargel told Plaintiff "during a briefing not to speak up because he was still

on probation and he should 'know his place.'" (FAC ¶ 27.) Plaintiff then implies this is racial harassment because Dargel never told any non-Asian Officer to 'know his place' contributing to the anti-Asian stereotype that Asian people are passive and submissive. . . . (Ibid.) This second sentence, however, is not a fact but is argument. Plaintiff has already couched the context of this comment as directed to Plaintiff while on probation to know his place in that context and not in a racial context. Put differently, a reasonable person would not interpret this as a racial attack.

Accordingly, the court SUSTAINS the demurrer as to Dargel.

v.

Joshua Price

Here, Plaintiff sufficiently stated severe or pervasive conduct by Price. First, Price was a lieutenant and supervisor. (FAC ¶ 8.) Second, Price laughed at Fenner's sushi restaurant remark. (FAC ¶ 25.) Third, Price mocked Asian speech patterns in Plaintiff's presence by stating: "Asians can't go Christmas caroling because they can't pronounce their L's" and sang "fa ra ra ra" while others laughed. (FAC ¶ 28.) As with Stein and Fenner, a reasonable person in Plaintiff's position could find their workplace seriously altered by this behavior. This is sufficient for the pleadings stage.

Accordingly, the court OVERRULES the demurrer as to Price.

vi.

Ed Meeker

Here, Plaintiff sufficiently stated severe conduct by Meeker for pleading purposes. First, Meeker was a non-supervisory police officer. (FAC ¶ 9.) Second, Meeker sent Plaintiff a text message with an offensive video entitled "If Santa was Asian" depicting stereotypes. (FAC ¶ 30.) This is a severe racial epithet is inappropriately decided now.

Accordingly, the court OVERRULES the demurrer as to Meeker.

vii.

Daniel Gigliobianco

Here, Plaintiff sufficiently stated severe or pervasive conduct by Gigliobianco. First, Gigliobianco was a non-supervisory police officer. (FAC ¶ 10.) Second, Gigliobianco texted Plaintiff: “you’re my favorite North Korean” knowing Plaintiff is South Korean which is extremely offensive to South Koreans. Third, Gigliobianco also texted Plaintiff: “Bobby Wee would be proud” as mocking some Asian immigrant speech patterns. (FAC ¶ 33.) A reasonable person in Plaintiff’s position could find this conduct significantly altered the workplace. This is sufficient for the pleadings stage.

Accordingly, the court OVERRULES the demurrer as to Gigliobianco.

viii.

Michael Randazzo

Here, Plaintiff insufficiently stated severe or pervasive conduct by Randazzo. Notably, Randazzo was seen and photographed doing a Nazi salute at a campfire, explained it was a “joke”, and explained he had since burned the photograph. (FAC ¶ 49.) However, there are no allegations as to when this was and how Plaintiff learned of it. While undoubtedly offensive, Plaintiff did not plead facts linking this behavior to him. There are therefore insufficient facts that Randazzo created a hostile work environment.

Accordingly, the court SUSTAINS the demurrer as to Randazzo.

Motion to Strike

The Individual Defendants move to strike the request for punitive damages as to the fourth cause of action because that claim is not against them. Plaintiff did not file an opposition. The court accepts this lack of opposition as a concession. (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215 [“[C]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.”])

After reviewing the FAC, the court agrees with the Individual Defendants that punitive damages on the fourth cause of action is

inappropriate as to them since they are not named in that claim.

Accordingly, the court GRANTS the Individual Defendants' motion to strike.

Leave to Amend

Leave to amend should be liberally granted if there is a reasonable possibility an amendment could cure the defect.¿ (County of Santa Clara v. Superior Court (2022) 77 Cal.App.5th 1018,1035.)¿ The Plaintiff has the burden of demonstrating that leave to amend should be granted, and that the defects can be cured by amendment. ("Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349).

Here, the aforementioned defects are reasonably capable of curing. Accordingly, the court will GRANT leave to amend.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrers
by Stein, Fenner, Price, Meeker, and Gigliobianco are OVERRULED;
2. Demurrers
by Swann, Dargel, and Randazzo are SUSTAINED with leave to amend;
3. Motion
to strike is GRANTED;
4. Plaintiff
shall file their amended complaint within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 4, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court